

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 12, 2023, with this Agency by A.A.A. (hereinafter, the complainant) against the GENERAL DIRECTORATE OF THE CIVIL GUARD (hereinafter, the respondent) for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021).

The procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), applicable to the processing of the present complaint, have been carried out in accordance with Article 52.2 of LO 7/2021, and the following has been established:

FACTS

FIRST: The complainant exercised the right of access against the respondent without their request having received the legally established response. The complainant states that through an electronic entry registration dated November 2, 2023, their legal representative requested access to their police records contained in the INTPOL processing, providing a document designating a specific representative for the procedure, receiving a letter dated November 15, 2023, informing that "by virtue of Articles 14.2 and 3 of Law 39/2015, and as they are among the groups required to interact electronically, they are urged to process their request electronically (...) having to prove the representation through the Electronic Registry of Powers."

In response to the submitted request, they were urged to prove the representation, subsequently sending them a letter of withdrawal for not having remedied the situation. The complainant expresses their disagreement with the received letter, specifically with the request to prove the representation according to electronic power of attorney, considering that the submission of the handwritten document designating the representative is legally valid.

The complainant's representative adds that the complainant is in an irregular stay, which means they cannot prove their representation through electronic power of attorney, as they do not have a digital certificate or a valid document in Spain to access the electronic headquarters of public administrations since they only have a passport, so this new requirement from the respondent translates into the impossibility for an irregular citizen to access their police records.

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They also provide the letter declaring them withdrawn from the request within the present file, as more than ten days have passed since the Administration required the remedy of their request, proceeding to archive the actions.

SECOND: Once the procedure provided for in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent was granted a hearing period, to present the allegations they deemed appropriate within fifteen working days.

The respondent replies to this Agency referring to what has already been previously answered to the complainant. According to the respondent, the complaint has not been submitted through the appropriate channel, as it concerns a lawyer representing the complainant, a legal entity, who must interact with the administration through the electronic registry. The respondent states that this has not been done through the registry enabled for this purpose. They also state that the representation of the complainant by their lawyer has not been adequately proven.

THIRD: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate the allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

FIRST: The Director of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints submitted to the Spanish Agency for Data Protection, which consists of forwarding them to the data protection delegates designated by the controllers or processors of the data, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze such complaints and respond within one month, prior to the admission of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to prove that they have provided the complainant with the due response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

On February 27, 2024, for the purposes provided in Article 64.2 of the LOPDGDD, the complaint submitted was admitted for processing. This admission agreement determines the opening of the present procedure for lack of

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3/5

attention to a request for the exercise of the right established in Article 22 and of the LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

II

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of said law. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing. The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

The communication addressed to the interested party regarding their request must be expressed in a concise, intelligible, easily accessible manner, and with clear and simple language for all individuals, including those with disabilities.

For its part, the right of access is regulated in Article 22 of the aforementioned LO 7/2021 in the following terms:

Article 22. Right of the interested party to access their personal data.

1. The interested party shall have the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed. In the event that the processing is confirmed, the interested party shall have the right to access such personal data, as well as the following information:

- a) The purposes and legal basis of the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been communicated, in particular, the recipients established in countries that are not members of the European Union or international organizations.

- d) The retention period of the personal data, when possible, or, if not, the criteria used to determine such period.
 - e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the interested party or the limitation of its processing.
 - f) The right to lodge a complaint with the competent data protection authority and their contact details.
 - g) The communication of the personal data subject to processing, as well as any available information about its origin, without revealing the identity of any natural person, especially in the case of confidential sources.
2. When the controller processes a large amount of information concerning the interested party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may require the interested party to specify the request within ten days.
3. The right of access shall be deemed granted if the data controller provides the interested party with a remote, direct, and secure system that permanently guarantees access to all their personal data. The notification informing the interested party of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in paragraph 1, the interested party shall have the right to request it.
4. When the interested party chooses a means other than the one offered that incurs a disproportionate cost, the request will be considered excessive, and the interested party will bear the excess cost that their choice entails. In this case, the data controller shall only be required to satisfy the right of access through the proposed means without undue delay. If the interested party does not bear the excess cost, access will be provided through the means initially proposed by the data controller.

For its part, Article 20.6 of LO 7/2021 establishes:

When the data controller has reasonable doubts about the identity of the natural person making the request referred to in Articles 22 and 23, they shall request that the individual provide the additional information necessary to confirm their identity within ten days. If this information is not provided within that period, the request will be considered withdrawn by means of a reasoned resolution. The period referred to in paragraph 4 shall begin to be counted from the date on which the additional information is provided.

III

Conclusion

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that one of the arguments of the responding party is that the representation of the complainant is not adequately accredited and, given that the rights being requested are personal rights, this Agency shares this argument and considers that the complaint must be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. against D.G. DE LA GUARDIA CIVIL.

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5/5

SECOND: NOTIFY this resolution to A.A.A. and to D.G. OF THE CIVIL GUARD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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